

Court No. - 3

Case :- WRIT - C No. - 23320 of 2022

Petitioner :- Rajesh Singh Solanki

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Vinay Kumar Mishra

Counsel for Respondent :- CSC

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Surendra Singh-I,J.

Heard Sri Mahaveer Yadav holding brief of Sri Vinay Kumar Mishra, learned counsel for the petitioner, learned standing counsel for the State-respondents and Rishu Mishra, learned counsel for the respondent No.4/ Power Distribution Corporation.

This writ petition has been filed praying for the following relief:

"i) Issue a writ, order or direction in the nature of certiorari to quashing the impugned demand notice dated 13.04.2022 and 17.06.2022 issued by respondent no.2 demanding Rs. 28,79,907.00/- + 2,20,000/- summon fee illegally imposed upon the petitioner.

ii) Issue a writ, order or direction in the nature of mandamus commanding the respondent no. 2 not recover the electricity charges as directed by checking team and fixed the revenue upon the petitioner."

Sri Rishu Mishra, learned counsel for the respondent No.4/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.8 of U.P. Electricity Supply Code, 2005** before the respondent No.4, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 18.8.2022

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